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COMMISSION IMPLEMENTING DECISION

of 8.10.2026

laying down rules for the application of Directive 2010/75/EU of the European Parliament and of the Council as regards uniform conditions for operating rules for rearing of poultry and pigs

{SWD(2026) 298 final}

(Text with EEA relevance)

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laying down rules for the application of Directive 2010/75/EU of the European Parliament and of the Council as regards uniform conditions for operating rules for rearing of poultry and pigs

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Directive 2010/75/EU of the European Parliament and of the Council of 24 November 2010 on industrial and livestock rearing emissions (integrated pollution prevention and control)¹, and in particular Article 70i(2), second subparagraph, thereof,

Whereas:

- (1) Directive 2010/75/EU lays down rules to prevent or reduce pollution arising from industrial activities. In this context, the Commission is to establish uniform conditions for operating rules for the activities referred to in Annex Ia to that Directive, namely the rearing of pigs and poultry of a certain capacity.
- (2) A sub-group to the Industrial Emissions Expert Group has been created to support the Commission in the early preparation of the implementing act establishing the uniform conditions for operating rules for poultry and pigs rearing in accordance with Article 70i IED, before submission to the committee in accordance with Regulation (EU) N°182/2011. The sub-group fulfils the call on the Commission, pursuant to Article 70i(1) of the IED to carry out appropriate consultations and organise an exchange of information during the preparatory work of these uniform conditions, including at expert level.
- (3) The sub-group met on several occasions from February 2025 until May 2026. In this context, measures concerning on-farm processes and activities, such as nutritional management, feed preparation, housing, manure management, including collection, storage, processing and land spreading, as well as storage of dead animals were discussed. The sub-group provided data and shared information, based on which the uniform conditions for operating rules have been developed.
- (4) The economic feasibility of certain techniques varies depending on the farm size. Consequently, it is appropriate to set proportionate requirements for farms carrying out activities referred to in Annex Ia to Directive 2010/75/EU which did not fall within the scope of that Directive before 4 August 2024.
- (5) In order to allow for the most cost-effective techniques to be employed at farm level, the best-available techniques and emerging techniques referred to in the uniform

¹ Directive 2010/75/EU of the European Parliament and of the Council of 24 November 2010 on industrial and livestock rearing emissions (integrated pollution prevention and control) (OJ L 334, 17.12.2010, p. 17, ELI: <http://data.europa.eu/eli/dir/2010/75/oj>).

conditions for operating rules should be neither prescriptive nor exhaustive. It should be possible to use other techniques that ensure at least an equivalent level of environmental protection, including human health and climate protection. Therefore, in the event that techniques not listed in the uniform conditions are applied, it is necessary that Member States validate that their use ensures at least an equivalent level of environmental protection, based on scientifically established methods, also taking into account animal welfare systems recognised at Union, national or international level.

- (6) Information on the environmental performance of the techniques listed in the uniform conditions for operating rules (e.g. efficiency for ammonia emissions reduction) is based on the information exchange pursuant to Article 70i(1) of Directive 2010/75/EU, and on recognised international guidance (e.g. the UNECE guidance document on ‘Options for ammonia mitigation’²). It should be possible to use additional information on the environmental performance of the techniques from Union, national or international sources that ensure the provision of data of an equivalent scientific quality. When the use of additional information leads to different environmental performance than the one listed in the uniform conditions, or when the environmental performance of the techniques is not specified in the uniform conditions, it is necessary that Member States, as appropriate, validate the environmental performance of the techniques, based on scientifically established methods.
- (7) It is also necessary that Member States validate the environmental performance of combinations of techniques, based on scientifically established methods, and that Member States ensure that all underlying data, methodologies, and assumptions are fully documented and publicly available.
- (8) To reduce the administrative burden involved in the application of techniques not listed in the uniform conditions for operating rules, Member States should strive to cooperate in order to foster mutual recognition of techniques.
- (9) The maximum values of ammonia emissions to air established in these uniform conditions for operating rules should be understood as setting emission limit values as referred to in Article 70d(2) and Article 70f(1) of the directive.
- (10) The maximum values of total nitrogen excreted and maximum values of total phosphorus excreted established in the uniform conditions for operating rules should be understood as setting environmental performance limit values as referred to in Article 70d(2) and Article 70f(1) of Directive 2010/75/EU.
- (11) Article 3(5) of Directive (EU) 2024/1785 of the European Parliament and of the Council³ sets out that in relation to installations carrying out activities referred to in Annex Ia to Directive 2010/75/EU, Member States are required to apply the laws, regulations and administrative provisions adopted in accordance with Directive (EU) 2024/1785 within: (a) four years of the entry into force of the implementing act

² Bittman, S., Dedina, M., Howard C.M., Oenema, O., Sutton, M.A., (eds), 2014, Options for Ammonia Mitigation: Guidance from the UNECE Task Force on Reactive Nitrogen, Centre for Ecology and Hydrology, Edinburgh, UK

³ Directive (EU) 2024/1785 of the European Parliament and of the Council of 24 April 2024 amending Directive 2010/75/EU of the European Parliament and of the Council on industrial emissions (integrated pollution prevention and control) and Council Directive 1999/31/EC on the landfill of waste (OJ L, 2024/1785, 15.7.2024, ELI: <http://data.europa.eu/eli/dir/2024/1785/oj>).

referred to in Article 70i(2) of Directive 2010/75/EU, if the installation has a capacity of 600 livestock units (LSU) or more; (b) five years of the entry into force of the implementing act referred to in Article 70i(2) of Directive 2010/75/EU, if the installation has a capacity of 400 LSU or more; (c) six years of the entry into force of the implementing act referred to in Article 70i(2) of Directive 2010/75/EU, for all other installations covered by Annex Ia to Directive 2010/75/EU. Until the relevant date of application, as referred to in Article 3(5), first subparagraph, of Directive (EU) 2024/1785, the installations mentioned in that subparagraph which fall within the scope of Directive 2010/75/EU in the version in force on the day before Directive (EU) 2024/1785 enters into force are required to comply with Directive 2010/75/EU in that version. It is therefore appropriate, for the purpose of applying the uniform conditions for operating rules, that a 'new farm' is defined as a farm whose construction has been authorised or registered after the applicable deadline set out in Article 3(5) of Directive (EU) 2024/1785, or as a complete replacement of a farm after the applicable deadline set out in Article 3(5) of Directive (EU) 2024/1785.

- (12) The maximum values of ammonia emissions to air from animal housing should be set at the level of each animal house present at the farm. However, Member States should be given the option to apply maximum values across all animal houses at the same farm, provided that there is no net increase in ammonia emissions from housing in the farm, as this would enable the implementation of cost-effective measures by farmers.
- (13) As an alternative to the maximum values of ammonia emissions to air set out in the uniform conditions, Member States should be allowed to use a relative system based on minimum ammonia reduction requirements at each animal house as compared to a reference system based on Union or international sources (e.g. UNECE guidance document on 'Options for ammonia mitigation'⁴), provided that it ensures at least the same reduction of ammonia emissions and that it is based on scientifically established methods recognised at Union or international levels.
- (14) Emission factors associated to certain animal categories and techniques, or the environmental performance of techniques may change over time due to new scientific findings. In such cases, where the change no longer allows compliance with the maximum values set out in the uniform conditions for operating rules, Member States should ensure that farmers who implemented techniques that were enabling compliance before the change occurred are not penalised. However, Member States should take the necessary measures to assist farmers to re-establish compliance.
- (15) Weaners should be defined as young pigs reared from weaning until fattening, typically reared from a live weight of around 8 kg until a live weight of around 30 kg. However, the emissions associated with weaners increase as their live weight increases. Therefore, for the purpose of calculating the installation capacity, conversion rates that reflect that increase in emissions over time have been included in the Commission's proposal for a Directive of the European Parliament and of the Council amending Directive (EU) 2024/1785⁵, by differentiating between weaners below and above 20 kg of live weight and by ensuring that weaners above 20 kg of

⁴ As referred to in footnote 2.

⁵ Proposal for a Directive of the European Parliament and of the Council amending Directives 2008/98/EC, 2010/75/EU, (EU) 2015/2193 and (EU) 2024/1785 of the European Parliament and of the Council as regards simplification of some requirements and reduction of administrative burden; COM/2025/986 final.

live weight are accounted for as ‘other pigs’ for the purpose of calculating the installation capacity.

- (16) Pursuant to Article 70c(5) of Directive 2010/75/EU, the Commission is to assess the impacts of the implementation of the operating rules laid down in Article 70i of that Directive and submit, by 11 years after the entry into force of the implementing act referred to in Article 70i(2) of that Directive, a report to the European Parliament and to the Council on the results of that assessment.
- (17) In order to ensure that the uniform conditions for operating rules reflect scientific and technological developments, the Commission should ensure their periodic reviews and updates. Such updates should aim at integrating developments in best-available techniques, emerging techniques, and evolving environmental and animal welfare standards. Such updates should also take into account the findings of the Innovation centre for industrial transformation and emissions.
- (18) The Commission should update this Decision where developments in the best-available techniques allow for a significant reduction of emissions or following the assessment referred to in Article 70c(5) of Directive 2010/75/EU, where relevant.
- (19) Pursuant to Article 70i(3) of Directive 2010/75/EU, Member States are to ensure that the competent authority follows or is informed of developments in best-available techniques and of the publication of any new or updated uniform conditions for operating rules.
- (20) It is appropriate to implement targeted flexible requirements for production systems improving animal welfare recognised at Union, national or international level, which may, in certain cases, lead to higher emissions than conventional systems.
- (21) In its Communication 'Vision for Agriculture and Food'⁶, the Commission highlighted the need for a future proof agri-food sector that functions within planetary boundaries, where farming and the food sector contribute together to the Union's climate objectives, while preserving healthy soils, clean water and air, and protecting and restoring Union's biodiversity. The Commission has also set the target of cutting administrative burden and meaningful simplification in policy areas that affect farmers.
- (22) The measures provided for in this Decision are in accordance with the opinion of the Committee referred to in Article 75 of Directive 2010/75/EU,

HAS ADOPTED THIS DECISION:

Article 1

The uniform conditions for operating rules as referred to in Article 70i of Directive 2010/75/EU are those set out in the Annex to this Decision.

⁶ Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions: A Vision for Agriculture and Food Shaping together an attractive farming and agri-food sector for future generations (COM/2025/75 final).

Article 2

1. Other techniques than those listed in the Annex to this Decision may be used. In such cases, Member States shall validate, based on scientifically established methods, that the use of such techniques, as defined in Article 3, point (10)(a), of Directive 2010/75/EU ensures at least an equivalent level of environmental protection to those listed in the Annex, including human health and climate protection, also taking into account animal welfare systems recognised at Union, national or international level.
1. Environmental performances of techniques listed in the Annex to this Decision that are different from those listed in Sections 4 and 5 of that Annex may be used. In such cases, Member States shall validate such environmental performances, based on scientifically established methods.
2. When techniques listed in the Annex to this Decision are used for which the environmental performance is not specified in Sections 4 and 5 of that Annex, Member States shall validate their environmental performance.
3. When combinations of techniques are used, Member States shall validate the environmental performance of such combinations of techniques.
5. Member States shall ensure that all underlying data required by Directive 2003/4/EC of the European Parliament and of the Council⁷, methodologies, and assumptions used for the validations carried out in accordance with paragraphs 1 to 4 of this Article, are fully documented and publicly available.

Article 3

1. Member States may decide to use, as an alternative to the maximum values of ammonia emissions to air set out in the Annex to this Decision, a relative system based on minimum ammonia reduction requirements at each animal house as compared to a reference system based on Union or international sources. In this case Member States shall ensure that such system provides at least the same reduction of ammonia emissions as the one achieved when using the maximum values of ammonia emissions to air set out in that Annex, and that it is based on scientifically established methods.
4. Member States referred to in paragraph 1 shall ensure that all underlying data, required by Directive 2003/4/EC of the European Parliament and of the Council⁸, methodologies, and assumptions are fully documented and publicly available via the internet. They shall inform the Commission about the use of the alternative approach and about the underlying data, methodologies and assumptions.
5. Member States that decide, as an alternative to the maximum values of ammonia emissions to air at each animal house, to apply maximum values of ammonia emissions to air across all animal houses at the same farm, shall ensure that there is no net increase in ammonia emissions from housing in the farm.

⁷ Directive 2003/4/EC of the European Parliament and of the Council of 28 January 2003 on public access to environmental information and repealing Council Directive 90/313/EEC (OJ L 41, 14.2.2003, p. 26, ELI: <http://data.europa.eu/eli/dir/2003/4/oj>).

⁸ Directive 2003/4/EC of the European Parliament and of the Council of 28 January 2003 on public access to environmental information and repealing Council Directive 90/313/EEC (OJ L 41, 14.2.2003, p. 26, ELI: <http://data.europa.eu/eli/dir/2003/4/oj>).

Article 4

This Decision shall apply as follows:

- (a) not later than 4 years from 8 October 2026 for installations covered by Annex Ia of Directive 2010/75/EU with a capacity of 600 LSU or more;
- (b) not later than 5 years from 8 October 2026 for installations covered by Annex Ia of Directive 2010/75/EU with a capacity of 400 LSU or more;
- (c) not later than 6 years from 8 October 2026 for all other installations covered by Annex Ia of Directive 2010/75/EU.

Article 5

This Decision is addressed to the Member States.

Done at Brussels, 8.10.2026

For the Commission
Jessika ROSWALL
Member of the Commission

